

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
WESLEY BENNETT,

Plaintiff,

-against-

THE CITY OF NEW YORK, P.O. SCOTT SOHN, Shield No. 22227 (Tax Id. No. 955515), Individually and in his Official Capacity, and POLICE OFFICERS "JOHN DOE" #1-10, Individually and in their Official Capacity (the name John Doe being fictitious, as the true names are presently unknown),

Defendants.

-----X

SUMMONS

Jury Trial Demanded

Plaintiff designates Kings County as the place of trial.

The basis of venue is:
CPLR § 504(3)

To the above-named Defendants:

You are hereby summoned to answer the Complaint in this action, and to serve a copy of your answer, or, if the Complaint is not served with this Summons, to serve a notice of appearance on the Plaintiffs' attorney within 20 days after the service of this Summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Complaint.

Dated: NEW YORK, NEW YORK
November 15, 2018

COHEN & FITCH LLP
Attorneys for Plaintiff
233 Broadway, Suite 1800
New York, N.Y. 10279
(212) 374-9115

TO:

ZACHARY W. CARTER, Corporation Counsel of the City of New York
Attorney for Defendant, THE CITY OF NEW YORK
100 Church Street
New York, New York 10007

P.O. SCOTT SOHN, Shield No. 22227 (Tax Id. No. 955515)
83rd Precinct
480 Knickerbocker Ave.
Brooklyn, NY 11237

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF KINGS

-----X
WESLEY BENNETT,

Plaintiff,

-against-

VERIFIED COMPLAINT

THE CITY OF NEW YORK, P.O. SCOTT SOHN, Shield No. 22227 (Tax Id. No. 955515), Individually and in his Official Capacity, and POLICE OFFICERS "JOHN DOE" #1-10, Individually and in their Official Capacity (the name John Doe being fictitious, as the true names are presently unknown),

Jury Trial Demanded

BASIS FOR VENUE:

CPLR § 504(3)

Defendants.

-----X

Plaintiff WESLEY BENNETT, by his attorneys, COHEN & FITCH LLP, complaining of the defendants, respectfully alleges as follows:

FACTS

1. Plaintiff WESLEY BENNETT is an African American male and has been at all relevant times a resident of Kings County in the City and State of New York.
2. Defendant, THE CITY OF NEW YORK, was and is a municipal corporation duly organized and existing under and by virtue of the laws of the State of New York.
3. Defendant, THE CITY OF NEW YORK, maintains the New York City Police Department, duly authorized public authorities and/or police departments, authorized to perform all functions of a police department as per the applicable sections of the New York State Criminal Procedure Law, acting under the direction and supervision of the aforementioned municipal corporation, The City of New York.

4. That at all times hereinafter mentioned, the individually named defendants, P.O. SCOTT SOHN, Shield No. 22227 (Tax Id. No. 955515), and POLICE OFFICERS “JOHN DOE” #1-10, were duly sworn police officers of said department and were acting under the supervision of said department and according to their official duties.

5. That at all times hereinafter mentioned the defendants, either personally or through their employees, were acting under color of state law and/or in compliance with the official rules, regulations, laws, statutes, customs, usages and/or practices of the State or City of New York.

6. Each and all of the acts of the defendants alleged herein were done by said defendants while acting within the scope of their employment by defendant THE CITY OF NEW YORK.

7. Each and all of the acts of the defendants alleged herein were done by said defendants while acting in furtherance of their employment by defendant THE CITY OF NEW YORK.

The Incident

8. On or about November 4, 2017, at approximately 11:45 p.m. in the County of Kings, City, and State of New York, plaintiff WESLEY BENNETT was lawfully in the vicinity of 894 Broadway, Brooklyn, NY.

9. Plaintiff, a for-hire-vehicle driver, had gone to the above-mentioned location to deliver a cell phone to an individual who had left same in his vehicle earlier thereto.

10. Prior to arriving at the above-mentioned location, plaintiff had spoken to this individual (hereinafter, “the passenger”) via text message and advised him that he was in possession of the lost cell phone and that he would return same.

11. Plaintiff further advised the passenger that he would mail the cell phone back to him *at no cost*.

12. Nonetheless, the passenger did not want to wait for the cell phone to come in the mail and asked plaintiff if he would deliver the phone directly to him in Brooklyn.

13. In response, plaintiff advised the passenger that he was in New Jersey and that could deliver the phone directly, but that doing so would cause him to lose out on other fares and in turn cause him to lose wages. Likewise, plaintiff advised the passenger that if he wanted the phone delivered to Brooklyn (as opposed to mailed), he would need to pay plaintiff *for his time*.

14. At no time did plaintiff ever tell the passenger that he needed to pay for the return of the phone. In fact, several times, *plaintiff offered to return the phone via mail for free*.

15. Nonetheless, the passenger insisted that he wanted the phone delivered to Brooklyn, that he preferred to pay plaintiff for his time, and that he did not want plaintiff to mail the phone.

16. As such, plaintiff agreed to deliver the phone to Brooklyn, and plaintiff and the passenger agreed to meet in the vicinity of 894 Broadway, Brooklyn, NY.

17. Upon plaintiff's arrival at the above-mentioned location, the passenger approached plaintiff's vehicle, at which time, plaintiff provided him with the phone, and the passenger provided plaintiff with money, which was solely *to cover the cost of the delivery to Brooklyn*, that the passenger had requested and agreed to.

18. Further, at the aforesaid time and place, plaintiff was not acting in any manner to illicit suspicion or reasonable cause to believe that he had committed or was about to be committing any criminal offenses and/or violations.

19. Nonetheless, several minutes after plaintiff provided the passenger with his phone, employees of the NYPD – specifically, defendant officers SOHN and/or “JOHN DOE” #1-10 – accosted him and directed him to exit his vehicle.

20. Plaintiff complied with this directive and immediately thereafter, despite the lack of probable cause to believe that plaintiff had committed any crimes or infractions, defendant officers SOHN and/or “JOHN DOE” #1-10, placed plaintiff under arrest by handcuffing his arms tightly behind his back.

21. At no time on November 4, 2017, did defendants SOHN and/or “JOHN DOE” #1-10, possess reasonable suspicion to stop, question, and/or frisk plaintiff.

22. At no time on November 4, 2017, did defendants SOHN and/or “JOHN DOE” #1-10, possess reasonable suspicion and/or probable cause to stop and/or search plaintiff’s person.

23. At no time on November 4, 2017, did defendants SOHN and/or “JOHN DOE” #1-10, possess probable cause to arrest plaintiff.

24. At no time on November 4, 2017, did defendants SOHN and/or “JOHN DOE” #1-10, possess information that would lead a reasonable officer to believe probable cause existed to arrest plaintiff.

25. Thereafter, said defendant officers placed Mr. Bennett in police vehicle and transported him to a nearby police precinct.

26. Subsequently, upon arrival at said precinct, plaintiff was subjected by defendants SOHN and/or “JOHN DOE” #1-10, to a search, confined in a holding cell for several hours, fingerprinted, photographed, and charged with Petit Larceny and Criminal Possession of Stolen Property.

27. Subsequently, plaintiff was transported to Central Booking where he was searched, subjected to a retina scan (“eye scan”), and further detained in a holding cell before his arraignment. Following his arraignment, plaintiff was released from custody.

28. At no time on November 4, 2017, did Mr. Bennett, possess commit a larceny, nor did he possess stolen property, nor did he commit any crimes, violations, and/or infractions, nor did he behave unlawfully in any way, nor did the above-named defendants possess probable cause for his arrest.

29. Nonetheless, in connection with plaintiff’s arrest, defendants filled out false and/or misleading police reports and forwarded them to prosecutors at the Kings County District Attorney’s Office (“KCDA”) – namely, defendant SOHN falsely stated that plaintiff requested that the passenger provide him money in exchange *for the phone* (as opposed to for his travel time, as was agreed upon by plaintiff and the passenger) and that plaintiff wanted this money *for the phone* (again, as opposed to for his travel time). Upon information and belief, false information was also provided to KCDA by defendants “JOHN DOE” #1-10.

30. Further, prior to meeting with KCDA, defendant SOHN reviewed the text messages between plaintiff and the passenger, messages which made explicitly clear that: 1) the passenger had left his phone in plaintiff’s vehicle; 2) the passenger gave plaintiff permission and authority to take possession, custody, dominion, and/or control over the phone for the purposes of returning same; 3) the plaintiff explicitly offered to return the phone via mail to the passenger at no cost; and, 4) the plaintiff *did not* request the passenger pay him money in exchange *for the phone*, but rather, solely *requested to be paid for the time it would take him to return the phone to Brooklyn*, at the passenger’s request. Thus, defendant SOHN was fully aware that the information he provided to KCDA was false and/or misleading when he provided it.

31. Thereafter, defendants SOHN and/or “JOHN DOE” #1-10, repeatedly gave the aforementioned false and misleading information regarding the facts and circumstances of plaintiff’s arrest.

32. As a result of his unlawful arrest, plaintiff WESLEY BENNETT spent approximately two (2) days in custody.

33. Thereafter, as a result of his unlawful arrest, plaintiff was forced to make multiple court appearances – approximately seven (7) – until on or about April 25, 2018, when all charges against him were adjourned in contemplation of dismissal.

34. In addition, as a result of the foregoing, plaintiff was suspended from his job causing him to lose wages and suffered physical injuries to, *inter alia*, his wrists as a result of being tightly handcuffed.

35. Further, as a result of the foregoing, plaintiff had property confiscated from him that was not returned.

36. As a result of the foregoing, plaintiff WESLEY BENNETT sustained, *inter alia*, physical injuries, mental anguish, shock, fright, apprehension, embarrassment, humiliation, loss of his liberty, lost wages, and deprivation of his constitutional rights.

FEDERAL CLAIMS

FIRST CLAIM FOR RELIEF **DEPRIVATION OF FEDERAL RIGHTS UNDER 42 U.S.C. § 1983**

37. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

38. All of the aforementioned acts of defendants, their agents, servants and employees, were carried out under the color of state law.

39. All of the aforementioned acts deprived plaintiff of the rights, privileges and immunities guaranteed to citizens of the United States by the Fourth and Fourteenth Amendments to the Constitution of the United States of America, and in violation of 42 U.S.C. § 1983.

40. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers with all the actual and/or apparent authority attendant thereto.

41. The acts complained of were carried out by the aforementioned individual defendants in their capacities as police officers and corrections officers, pursuant to the customs, usages, practices, procedures, and the rules of the City of New York, the New York City Police Department and the New York City Department of Corrections, all under the supervision of ranking officers of said department.

42. Defendants, collectively and individually, while acting under color of state law, engaged in conduct which constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

**SECOND CLAIM FOR RELIEF ARISING
FALSE ARREST UNDER 42 U.S.C. § 1983**

43. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

44. As a result of the aforesaid conduct by defendants SOHN and/or "JOHN DOE" #1-10, plaintiff was subjected to illegal, improper and false arrest by the defendants, taken into custody, and caused to be falsely imprisoned, detained, and confined, without any probable cause, privilege or consent.

45. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he as put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints, without probable cause.

**THIRD CLAIM FOR RELIEF
DENIAL OF CONSTITUTIONAL RIGHT TO FAIR TRIAL
UNDER 42 U.S.C. § 1983**

46. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

47. Defendants SOHN and/or "JOHN DOE" #1-10, created false evidence against plaintiff.

48. Defendants SOHN and/or "JOHN DOE" #1-10, forwarded false evidence and false information to prosecutors in the Kings County District Attorney's office.

49. Defendants SOHN and/or "JOHN DOE" #1-10, misled the prosecutors by creating false evidence against plaintiff and thereafter providing false testimony throughout the criminal proceedings.

50. Specifically, defendant SOHN falsely stated that plaintiff requested that the passenger provide him money in exchange *for the phone* (as opposed to for his travel time, as was agreed upon by plaintiff and the passenger) and that plaintiff wanted this money *for the phone* (again, as opposed to for his travel time). Upon information and belief, false information was also provided to KCDA by defendants "JOHN DOE" #1-10.

51. Further, prior to meeting with KCDA, defendant SOHN reviewed the text messages between plaintiff and the passenger, messages which made explicitly clear that: 1) the passenger had left his phone in plaintiff's vehicle; 2) the passenger gave plaintiff permission and authority to take possession, custody, dominion, and/or control over the phone for the purposes

of returning same; 3) the plaintiff explicitly offered to return the phone via mail to the passenger at no cost; and, 4) the plaintiff *did not* request the passenger pay him money in exchange *for the phone*, but rather, solely *requested to be paid for the time it would take him to return the phone to Brooklyn*, at the passenger's request. Thus, defendant SOHN was fully aware that the information he provided to KCDA was false and/or misleading when he provided it.

52. In creating false evidence against plaintiff, in forwarding false evidence and information to prosecutors, and in providing false and misleading sworn statements, defendants SOHN and/or "JOHN DOE" #1-10, violated plaintiff's constitutional right to a fair trial under the Sixth Amendment and the Due Process Clause of the Fifth and Fourteenth Amendments of the United States Constitution.

53. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear for his safety, and he was humiliated and subjected to handcuffing and other physical restraints without probable cause.

FOURTH CLAIM FOR RELIEF
MUNICIPAL LIABILITY UNDER 42 U.S.C. § 1983

54. Plaintiff repeats, reiterates and re-alleges each and every allegation contained in the proceeding paragraphs with the same force and effect as if fully set forth herein.

55. Defendants, collectively and individually, while acting under color of state law, engaged in conduct that constituted a custom, usage, practice, procedure or rule of the respective municipality/authority, which is forbidden by the Constitution of the United States.

56. The aforementioned customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department include, but are not limited to, the following unconstitutional practices:

- i. arresting individuals regardless of probable cause in order to inflate the

officer's arrest statistics; and,

- ii. arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing; and,
- iii. fabricating evidence in connection with their prosecution in order to cover up police misconduct; and,
- iv. arresting innocent persons notwithstanding the existence of credible evidence which exonerates the accused of any criminal wrongdoing and regardless of probable cause, for the purpose of obtaining overtime compensation; and,
- v. failing to take reasonable steps to control and/or discipline police officers who lie and/or commit perjury in order to cover up police misconduct and/or inflate arrest statistics.

57. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department constituted deliberate indifference to the safety, well-being and constitutional rights of the plaintiff.

58. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the direct and proximate cause of the constitutional violations suffered by the plaintiff as alleged herein.

59. The foregoing customs, policies, usages, practices, procedures and rules of the City of New York and the New York City Police Department were the moving force behind the constitutional violations suffered by the plaintiff as alleged herein.

60. Defendants, collectively and individually, while acting under color of state law, were directly and actively involved in violating the plaintiff's constitutional rights.

61. Defendants, collectively and individually, while acting under color of state law, acquiesced in a pattern of unconstitutional conduct by subordinate police officers, and were directly responsible for the violation of the plaintiff's constitutional rights.

62. The acts complained of deprived the plaintiff of his right:

- A. Not to be deprived of liberty without due process of law;

- B. To be free from seizure and arrest not based upon probable cause;
- C. Not to have summary punishment imposed upon him; and
- D. To receive equal protection under the law.

WHEREFORE, plaintiff respectfully requests judgment against defendants as follows:

- i. an order awarding compensatory damages in an amount to be determined at trial;
- ii. an order awarding punitive damages in an amount to be determined at trial;
- iii. reasonable attorneys' fees and costs under 42 U.S.C. § 1988; and
- iv. directing such other and further relief as the Court may deem just and proper, together with attorneys' fees, interest, costs and disbursements of this action.

Dated: New York, New York
November 15, 2018

BY: _____/S_____
ILYSSA FUCHS
JOSHUA FITCH
GERALD COHEN
COHEN & FITCH LLP
Attorneys for Plaintiff
233 Broadway, Suite 1800
New York, N.Y. 10279
(212) 374-9115

ATTORNEY'S VERIFICATION

ILYSSA S. FUCHS, an attorney duly admitted to practice law in the Courts of the State of New York, shows:

That she is a member of the law firm of COHEN & FITCH, LLP the attorneys for plaintiff WESLEY BENNETT in the within entitled action.

That your deponent has read the foregoing **VERIFIED COMPLAINT** and knows the contents thereof, and that the same is true to his own knowledge, except as to the matters therein stated to be alleged upon information and belief, and as to those matters, she believes it to be true.

That the source of the deponent's information are investigation and records in the file.

That the reason why the verification is made by deponent and not by the plaintiff is that the plaintiff is not currently residing within the county wherein deponent maintains his office.

Deponent affirms that the foregoing statements are true under the penalties of perjury.

Dated: New York, New York
November 15, 2018

_____/S_____
Ilyssa S. Fuchs